

EXHIBIT 5

Compex Subpoena

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Compex

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): ALBERTO REYNA (BAR#: 347323) PHILLIPS, SPALLAS & ANGSTADT LLP 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411 E-MAIL ADDRESS: areyna@psalaw.net ATTORNEY FOR (Name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		FOR COURT USE ONLY CASE NUMBER: CGC-21-594102
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR		
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS		

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

CUSTODIAN OF RECORDS: **SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): **COMPEX LEGAL SERVICES**

On (date): **02/26/2024**

At (time): **09:00 A.M.**

Location (address): **325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503**

Do not release the requested records to the deposition officer prior to the date and time stated above.

- ☐ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
 - ☐ by delivered a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☒ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified):

RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO

DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, AND CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
(TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
(SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
(TITLE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO SUBHI ABDELHALIM INDIVIDUALLY, AND DBA DEFENDANT/RESPONDENT: SONOMA LIQUOR	CASE NUMBER: CGC-21-594102
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**PROOF OF SERVICE OF DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS**

1. I served this *Deposition Subpoena for Production of Business Records* by to the person served as follows:

- a. Person served (name):
- b. Address where served:
850 Bryant Street, Suite 511, San Francisco, CA 94103
- c. Date of delivery:
- d. Time of delivery:
- e. (1) ☒ Witness fees were paid.
Amount: _____ \$ 15.00
- (2) ☐ Copying fees were paid.
Amount: _____ \$ _____
- f. Fee for service: \$ _____

2. I received this subpoena for service on (date):

3. Person serving:

- a. ☐ Not a registered California process server.
- b. ☐ California sheriff or marshal.
- c. ☐ Registered California process server.
- d. ☐ Employee or independent contractor of a registered California process server.
- e. ☐ Exempt from registration under Business and Professions Code section 22350(b).
- f. ☒ Registered professional photocopier.
- g. ☐ Exempt from registration under Business and Professions Code section 22451.
- h. Name, address, telephone number, and, if applicable, county of registration and number:

Compex Legal Services, Inc.
325 Maple Avenue
Torrance, CA 90503

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

Date:

▶ _____
(SIGNATURE)

▶ _____
(SIGNATURE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: 6/6/1976
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556